



to make India more competitive in the global economy, its performance in primary and secondary education is, in a word, appalling. Three hundred million people are still unable to read their own names. Widespread literacy may not entirely obviate the need for reservations, but it will unquestionably show that the tale of discrimination must be woven around caste, economic disparities, gender, status, regional and linguistic affiliations, and history of schooling in one's family and community.

The case in favour, however, is not any more unequivocally clear. The advocates appear to think affirmative action policies in the US bear resemblance to India's system of quotas, but such comparisons are highly misleading despite similarities. In *Grutter v. Bollinger* (2003) case, the US Supreme Court, even as it upheld race as a factor that could be justly considered in decisions for university admission, held neither race nor ethnicity could be construed as a decisive or defining feature of a candidate's worthiness for admission. Affirmative action may be necessary in a society such as the US which, having homogenised itself to a remarkable degree, seeks to bring multiculturalism back into democracy. It may be argued that the debate over reservations would engender less disagreement if one were attentive to three things. First, there seems to be a consensus that there is unimpeachable evidence of historical and continuing discrimination against

The other side: Gujjars seeking reservation up in arms in Rajasthan

Dealing With Diversity

ADVOCATES OF QUOTAS MAY THINK AFFIRMATIVE ACTION POLICIES IN THE US BEAR RESEMBLANCE TO RESERVATIONS IN INDIA, BUT SUCH COMPARISONS ARE HIGHLY MISLEADING.

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scs and sts. The same cannot be said for obcs, who doubtless suffer from some disabilities but are not absolutely bereft of assets and entitlements. Second, it follows that reservations should not be confused with policies designed to alleviate poverty, though doubtless that reservations for scs and sts may have the effect of lifting some of them from the ranks of the poor. obcs and the numerous poor among the upper castes may quite productively be targeted for assistance in some other form under anti-poverty policies. Third, the idea of discrimination furnishes less analytical purchase than the trope of exclusion. People are excluded from full participation in their society on numerous grounds other than caste, and it thus becomes imperative to probe more deeply into

the various ways in which exclusion seriously impairs the practice of democracy.

In his speech at his trial in 1922, Mahatma Gandhi reminded the British that "affection could not be manufactured by law". Gandhi and Ambedkar famously tussled in 1930s over how untouchability could best be eradicated and towards the end of his life, Gandhi had come around to the view that social awakening of upper-caste Hindus would not suffice to bring about equality. Reservations have done nothing to strengthen traditions of volunteerism, and it is ironical that the state, the most egregious violator of human rights, should be invoked as the guarantor of distributive justice. It is, therefore, incumbent that we revisit the question of the ends to which reservations are designed. It is extremely doubtful, for example, that the educated in India have displayed a more ethical conception of citizenship than under-privileged segments of Indian society, just as it is clear that the communal outlook is more strongly entrenched among the educated middle class. Gandhi was prescient about this: "The hard-heartedness of the educated", he told an American visitor to Sevagram in the mid-1930s, "fills me with the greatest despair". Both the advocates and the opponents of reservations can profitably mull over this phenomenon.

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